

24VECV00629 24VECV00629

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-06-24

Motion: DEFENDANT MODERNIZE REMODELING INC.'S MOTION TO COMPEL DEFENDANT MENA ADEL METYA'S DEPOSITION AND REQUEST FOR SANCTIONS

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Case Number: 24VECV00629 Hearing Date: June 24, 2026 Dept: U

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST
DISTRICT

MARTHA L. HERNANDEZ,

Plaintiff,

vs.

MODERNIZE REMODELING, INC., et al.

Defendants.

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CASE NO: 24VECV00629

[TENTATIVE] ORDER RE:

DEFENDANT MODERNIZE REMODELING INC.'S

MOTION TO COMPEL DEFENDANT MENA ADEL METYA'S DEPOSITION AND REQUEST FOR
SANCTIONS

Dept. U

8:30 a.m.

June 24, 2026

I.

BACKGROUND

a. Procedural History

On February 13, 2024,

Plaintiff Martha Hernandez ("Plaintiff") filed her complaint against Defendants
Modernize Remodeling, Inc. ("Modernize") and Mena Adel Metyas ("Metyas"),
alleging: (1) financial elder abuse as to both Defendants; (2) fraud as to both
Defendants; (3) breach of contract as to Modernize; and (4) unlawful business

practices as to Modernize.

On March 14, 2025,

Cross-Complainant Modernize filed its cross-complaint against Cross-Defendant Metyas, seeking/alleging: (1) equitable, partial, or comparative indemnity; (2) declaratory relief; (3) equitable comparative contribution; and (4) apportionment of fault based on comparative negligence and/or comparative fault.

On April 11, 2025, Plaintiff

filed her first amended complaint (the "FAC") against Defendants Modernize; Metyas; Goodleap, LLC; and Service Finance Company, LLC ("Service Finance"), seeking/alleging: (1) financial elder abuse; (2) fraud; (3) breach of contract; (4) unlawful business practices; (5) rescission; and (6) declaratory relief.

On May 27, 2025,

Cross-Complainant Metyas filed his cross-complaint against Cross-Defendants Modernize; Best Solar Power Inc.; Renovateworks Inc.; Ultimate Business Concept, Inc.; Elkana Eric Aharoni; Kasra Baraei; David Lankry; Dragan Turkal; and Kevin Jackson, seeking/alleging: (1) willful misclassification of employee; (2) failure to pay overtime wages; (3) failure to pay earned wages; (4) failure to provide itemized wage statements; (5) failure to timely pay wages at separation; (6) unfair competition; (7) equitable indemnity; (8) contribution; (9) apportionment of fault; and (10) declaratory relief.

On July 16, 2025,

Cross-Complainant Service Finance filed its original cross-complaint against Cross-Defendants Modernize and Metyas, seeking/alleging: (1) express contractual indemnity; (2) implied indemnity; (3) equitable indemnity and contribution; and (4) breach of contract.

On September 30, 2025,

Cross-Complainant Service Finance filed its first amended cross-complaint (the "FACC") against Cross-Defendants Modernize and Metyas, seeking/alleging: (1) express contractual indemnity; (2) implied indemnity; (3) equitable indemnity and contribution; and (4) breach of contract.

On May 8, 2026, Modernize

filed the instant motion to compel Metyas to appear for Volume II of his deposition.

On May 22, 2026, Metyas filed

an opposition brief.

On June 6, 2026, Modernize
filed a reply brief.

b. Relevant Discovery History

Metyas's first volume
deposition took place on August 15, 2025, but only Plaintiff was able to
examine Metyas within the allotted time. (Yehoshua Decl., ¶ 2; Gurovich Decl.,
¶ 4.)

On November 4, 2025,
Modernize reached out to the parties to schedule the Volume II deposition of
Metyas. (Yehoshua Decl., ¶ 3, Ex. A.) Not
receiving a response, Modernize noticed Metyas's Volume II deposition to take
place on January 21, 2026. (Yehoshua Decl., ¶ 4, Ex. B; Gurovich Decl., ¶ 4.)

On January 14, 2026, Metyas
sent his objection to the deposition notice, citing unavailability. (Yehoshua
Decl., ¶ 5, Ex. C; Gurovich Decl., ¶ 5.)

On February 23, 2026, Modernize
again noticed the deposition, this time for March 11, 2026. (Yehoshua Decl., ¶
6, Ex. D; Gurovich Decl., ¶ 6.)

On March 4, 2026, Metyas sent
his objection to the deposition notice, citing unavailability. (Yehoshua Decl.,
¶ 7, Ex. E; Gurovich Decl., ¶ 7.)

On March 11, 2026, the
parties agreed to proceed on May 7, 2026. (Yehoshua Decl., ¶ 9, Ex. F; Gurovich
Decl., ¶¶ 9-10.)

On May 4, 2026, Metyas
notified the parties that the deposition would not proceed, citing a health
issue involving Metyas' family member. (Yehoshua Decl., ¶ 10, Ex. F; Gurovich
Decl., ¶ 11.)

On May 7, 2026, Metyas

notified the parties that counsel would not be available until June due to a family vacation, and provided several dates in June. (Yehoshua Decl., ¶ 11, Ex. F; Gurovich Decl., ¶ 13.)

On May 8, 2026, Modernize noticed the deposition for a third time for June 3, 2026, one of the proposed dates, and asserted that it would be filing a motion to compel Metyas' deposition to be heard after the set deposition date. Modernize stated it would keep it on calendar until Metyas' deposition was taken. (Yehoshua Decl., Ex. F.; Gurovich Decl., ¶¶ 16-18.)

On May 8, 2026, Metyas objected to the notice because he had not confirmed the date with his client. (Gurovich Decl., ¶ 19.)

In Modernize's Reply, filed June 9, 2026, asserts that Metyas' Volume II deposition still had not taken place. (Reply, p. 2.)

II.

LEGAL

STANDARD

Any party may obtain discovery, subject to restrictions, by taking the oral deposition of any person, including any party to the action. (Code Civ. Proc., § 2025.010.) A party desiring to take an oral deposition shall give a notice in writing which states the specification of reasonably particularly of any materials to be produced by the deponent. (Code Civ. Proc., § 2025.220, subd. (a)(4).) An individual's deposition shall be taken at a location either "within 75 miles of the deponent's residence, or within the county where the action is pending and within 150 miles of the deponent's residence," at the requesting's party's option. (Code Civ. Proc., § 2025.250, subd. (a).) A properly served deposition notice is effective to require a party or party-affiliated deponent to attend and to testify, as well as to produce documents for inspection and copying. (Code Civ. Proc., § 2025.280, subd. (a).) The party served with a deposition notice waives any error or irregularity unless that party promptly serves a written objection at least three calendar days prior to the date for which the deposition is scheduled. (Code Civ. Proc., § 2025.410, subd. (a).)

"If, after service

of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party...without having served a valid objection ... fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

III.

DISCUSSION

a. Meet

and Confer

A motion brought

to compel a deposition pursuant to Code of Civil Procedure section 2025.450 "shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition... by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).) Code of Civil Procedure section 2016.040 provides in full: "[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion."

It is clear from

the matching timelines provided by both parties and the correspondence provided by Modernize, the parties have had ongoing communications attempting to informally resolve the issue of Metyas' Volume II deposition.

The Court finds

Modernize has satisfied the meet and confer requirements.

b. Compel

Deposition

Modernize argues

that Modernize has attempted in good faith to take Metyas' Volume II deposition since November 2025 and Metyas has repeatedly failed to appear. (Mot., p. 5.)

Metyas argues that the instant motion is premature given that Modernize noticed Metyas' deposition for June 3, 2026 but filed the instant motion on May 8, 2026. (Opp., p. 4.) Metyas cites that Code of Civil Procedure, section 2025.450 is triggered only if, after service of a deposition notice, the party deponent fails to appear, proceed, or produce without having served a valid objection. (Code Civ. Proc., § 2025.450, subd. (a).) And since the deposition was noticed for June 3, 2026, Metyas properly objected because he had not agreed to June 3, 2026, and Metyas had not yet not appeared on June 3, 2026, the motion was premature. (Gurovich Decl., ¶¶ 17-19, Ex. 1.)

However, simply citing unavailability or a scheduling conflict is not a valid objection under Code of Civil Procedure, section 2025.410, because unavailability is not an error or irregularity in the notice itself. (Code Civ. Pro. § 2025.410.) If you receive a properly noticed deposition but cannot attend due to unavailability, you must affirmatively seek relief from the court rather than simply objecting to the notice. (Alliance Bank v. Murray (1984) 161 Cal.App.3d 1, 10 [207 Cal.Rptr. 233, 240 [The court have held that a party who fails to appear at a deposition due to a calendar conflict without obtaining a stipulation, court order, or protective order acts willfully and may be subject to sanctions.]]) Following Alliance Bank, Metyas has not validly objected to the first, second, or third deposition notice Modernize served and subsequently did not appear for any of the noticed dates.

Therefore, Modernize's instant motion is not premature and will not fail for this reason.

Metyas also argues that Modernize did not properly meet and confer. (Opp., p. 5.) The Court disagrees. The parties have been attempting to resolve the scheduling of Metyas' Volume II deposition for several months to no avail. Metyas has repeatedly failed to agree to proposed dates and failed to provide available dates. Further, on May 7, 2026, Metyas provided June 3, 2026 as a potential date of availability, yet when Modernize accepted it, Metyas asserted they had not confirmed the date with his client. (Gurovich Decl., ¶¶ 13-19.) As discussed above, Modernize satisfied the

meet and confer requirement.

Lastly, Metyas

argues that Modernize has not shown good cause to compel production of the documents demanded in the deposition notice because they are broad and sweeping categories. (Opp., pp. 5-6.) However, the instant motion does not request compliance with the production of documents demanded in the deposition notice.

Additionally, Metyas only served blanket and boilerplate objections to the categories requested, despite producing similar documents for Plaintiff's deposition of Metyas. (Reply, p. 3.) Modernize's motion to compel Metyas' appearance for deposition will not fail for this reason.

Therefore, the

Court grants Modernize's motion to compel Metyas to appear for his Volume II deposition within twenty (20) days of this order.

IV.

REQUEST FOR SANCTIONS

It is mandatory

that the Court "impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Here, Modernize

requests sanctions in the amount of \$3,900.00 in connection with filing the instant motion. Modernize asserts that counsel spent 4.8 hours meeting and conferring, preparing the instant motion, memorandum, and exhibits, 2 hours to review opposition and prepare reply, and 1 hour to appear for the hearing.

Modernize counsel's rate is \$500.00 per hour. The Court finds this reasonable.

The Court awards

Modernize \$3,960.00 in costs and attorneys' fees for the instant motion, representing 7.8 hours of attorney time at \$500 per hour plus the \$60.00 filing

fee.

V.

CONCLUSION

Defendant Modernize Remodeling Inc.'s motions to compel the deposition
of Defendant Mena

Adel Metyas is GRANTED

against Defendant Mena

Adel Metyas. See Code Civ. Proc., §

2025.450 (a).

Defendant Modernize Remodeling Inc. is

AWARDED sanctions against Defendant Mena Adel Metyas in the total amount of \$3,960.00. See Code Civ. Proc., §
2025.450 (g).

Defendant Modernize Remodeling Inc. is

ORDERED to give notice.

DATED: June 24, 2026

Yolanda

Orozco

Judge

of the Superior